

Break Time Policy

Policy, break schedule, missed-break log and state rule reference

Break time policy

Company	
Effective date	
Applies to	

1. Purpose and scope

This policy sets out the meal, rest and lactation breaks the Company provides, how they are scheduled and recorded, and what employees should do if a break is missed. Where state or local law provides more than this policy, the law applies.

2. Rest breaks

Non-exempt employees receive a paid rest break of [10] minutes for every [4] hours worked or major fraction, taken as near the middle of the work period as practicable. Rest breaks are paid, are not deducted from hours, and may not be combined to shorten the day or extend the meal break unless the supervisor agrees.

3. Meal breaks

Employees who work more than [5] hours receive an unpaid meal break of [30] minutes, starting no later than the end of the [fifth] hour. During the meal break the employee is relieved of all duties and free to leave the premises. A meal break that is interrupted or shortened by work is paid in full and recorded as worked.

4. Lactation breaks

Employees who are nursing receive reasonable break time to express milk for one year after the child's birth, each time they need to, and a private space that is not a bathroom. Breaks run concurrently with paid breaks where possible; additional time is unpaid unless the employee is not fully relieved of duty.

5. Recording

Employees clock out and in for meal breaks. Automatic deductions are not used. At clock-out, employees confirm whether they received their breaks; a missed or interrupted break is reported to the supervisor the same day and paid as worked, with any premium that state law requires.

6. Scheduling

Supervisors schedule breaks to maintain coverage. Employees may not be required to remain on call, answer phones or monitor equipment during an unpaid meal break.

7. Violations

Supervisors who prevent or discourage breaks are subject to discipline. Employees who take unauthorised extended breaks are subject to the attendance policy.

Employee: _____ Date: _____

HR: _____ Date: _____

Break schedule

Team or shift	
Date	

Employee	Shift start	Rest break 1	Meal break	Rest break 2	Shift end	Covered by

Missed-break log

Date	Employee	Break missed or cut short	Reason	Paid as worked (Y/N)	Premium paid (Y/N)	Supervisor